

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

**Honorable Matthew Harris, Presiding
(covering for Honorable Vincent I. Parrett)**

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

September 18, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25CV462727	John Navarro et al vs Amanda Navarro	Hearing: Demurrer Click to line 1 for Tentative Ruling; Court will prepare order.
LINE 2	26CV484278	EVERSHINE I, L.P. vs COM TAM THIEN HUONG et al	Hearing: Motion to Strike Click to lines 2 for Tentative ruling; Court will prepare order.
LINE 3	26CV484278	EVERSHINE I, L.P. vs COM TAM THIEN HUONG et al	Hearing: Demurrer Click to lines 2 for Tentative Ruling; Court will prepare order.
LINE 4	23CV415280	BIJAN HAGHIGHI vs City of Mountain View et al	Motion: Compel Click to Line 4 for Tentative Ruling; Court will prepare order.
LINE 5	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 5 for Tentative Ruling; Court will prepare order.
LINE 6	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 6 for Tentative Ruling; Court will prepare order.
LINE 7	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Admissions Deemed Admitted Click to Line 7 for Tentative Ruling; Court will prepare order.
LINE 8	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 8 for Tentative Ruling; Court will prepare order.
LINE 9	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 9 for Tentative Ruling; Court will prepare the order.
LINE 10	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 10 for Tentative Ruling; Court will prepare the order.
LINE 11	22CV404562	Nick Miletak vs ManPowerGroup US, Inc	Motion: Vacate Click to Line 11 for Tentative Ruling; Court will prepare the order.
LINE 12	23CV416455	N. Charles Podaras vs Valerie Weirauch et al	Motion: Leave to File Click to Line 12 for Tentative Ruling; court to do order.
9:01 Calendar			
LINE 1	26CV445369	Calvary SPV I, LLC v. Sherryanne Mangliogot	Hearing on Opposition to Claim of Exemption Parties to appear and argue.

Line 1:.

Hearing on Demurrer

Case Name: *JOHN NAVARRO et.al. v. AMANDA NAVARRO*

Case No.: 25CV462727

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant, Amanda Navarro, demurs to the complaint on the grounds that (1) the Court lacks subject matter jurisdiction, and (2) the complaint fails to allege facts sufficient to support a cause of action for intentional infliction of emotional distress. (Notice of Demurrer at 3:5-12)

Defendant's demurrer came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

The real property at issue is located at 335 Avenida Nogales, San Jose, California 95123 , APN 464-07-046. ("Subject Property") The Subject Property was originally owned by John Navarro, Sr. and Ramona Navarro. John Navarro, Sr. is the father of Plaintiff John Navarro and Defendant Amanda Navarro. Ramona Navarro is the mother of both parties. Both John Navarro Sr. and Ramona Navarro are now deceased. (Complaint ¶¶ 4, 9)

When Ramona Navarro became ill in April 2024, Defendant told staff at Kaiser Santa Teresa and Vasona Rehabilitation Center that John Navarro and Clemons could not visit Ramona Navarro. Neither plaintiff was permitted to see Ramona before she died. (Complaint ¶ 9)

Defendant engaged in a pattern of forging signatures of both decedents, using fraudulent documents related to the Subject Property, obtaining a guardianship appointment, recording a declaration severing joint tenancy, and creating an invalid will, all to obtain control of the Subject Property and the decedent's assets. (Complaint ¶ 9)

Plaintiffs initiated this action on April 2, 2025, alleging causes of action for (1) intentional infliction of emotional distress, and (2) quiet title.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is

irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts "construe the complaint 'liberally ... with a view to substantial justice between the parties[.]'" (*Ibid.*) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. "Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) "Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not." (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Preliminary Considerations

In support of their opposition to the demurrer, John Navarro and Emalu Clemons have submitted their declarations with attached exhibits. John Navarro attests to how Defendant submitted allegedly forged documents in the Probate Division to obtain conservatorship of their father; falsely accused him of assault twice in 2020 for one of which he was convicted after trial; isolated their parents from visitations during COVID lockdown and thereafter until their deaths. Emalu Clemons attests to the nature of her relationship with Romana Navarro, the parties' deceased mother.

These declarations are impermissible extrinsic evidence that cannot be considered to resolve the pleading confusion or the demurrer. A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *SKF Farms, supra*, 153 Cal.App.3d at 905)

IV. Request for Judicial Notice

Defendant requests judicial notice of the following documents:

- Exhibit 1 – Probate Order appointing Amanda Navarro conservator of the person and estate of John Navarro Sr.. Santa Clara Superior Court case No. 22PR192642.
- Exhibit 2 – Probate Order for substituted judgment to establish revocable trust and execute will of John Navarro Sr.. Santa Clara Superior Court case No. 22PR192642.
- Exhibit 3 – Trust Transfer Deed recorded on October 24, 2022, pertaining to John

- Navarro Sr.'s interest in the Subject Property
- Exhibit 4 – Trust Transfer Deed recorded on March 26, 2024, pertaining to Romana Navarro's interest in the Subject Property
- Exhibit 5 – Affidavit regarding death of trustee - Ramona Navarro - recorded on July 19, 2024.

Defendant's request is GRANTED, IN PART. The existence of these documents may be judicially noticed pursuant to Evid. Code § 452. However, the Court cannot take judicial notice of any hearsay or contested factual assertions within these documents or their legal validity. (See, *Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879.)

V. Analysis

The demurrer challenges the complaint on two principal grounds: (1) lack of subject matter jurisdiction because the allegations concern probate matters over which the probate court has exclusive jurisdiction, and (2) failure to state a cause of action for intentional infliction of emotional distress.

A. Subject Matter Jurisdiction

Defendant contends the probate court has exclusive jurisdiction over this matter since Plaintiffs' allegations concern the internal workings of the John Navarro, Sr. Trust, the Ramona Navarro Revocable Trust, the Conservatorship of John Navarro Sr., the actions by Defendant as both the conservator and as the trustee; and the real property owned by both trusts. As such, Defendant asks the Court to dismiss the complaint in its entirety or in the alternative transfer this matter to the probate department. (Demurrer at 7:9-8:20)

Opposing the demurrer, Plaintiffs contend the civil department has concurrent jurisdiction under Probate Code section 17000(b) to address the validity of the John Navarro Sr.'s and Romana Navarro's trusts since Defendant used falsified documents and exerted undue influence to create them. Plaintiffs emphasize that Defendant's acts were committed with the goal to exclude Plaintiff, John Navarro, from partaking of the estates of both of his parents. (Opposition at 2:9-15)

Probate Code section 17000(a) gives the probate department of the relevant superior court exclusive jurisdiction of proceedings concerning the internal affairs of trusts. Probate Code section 17200(b) provides a non-exhaustive list of proceedings that concern the internal affairs of a trust. Broadly speaking, that list may be summarized as a proceeding that pertains to modifying the terms of a trust, changing a designated successor trustee, deviating from trust provisions, determining authority over the trustee's acts, or administering the trust's financial arrangements. (See *Harnedy v. Whitty* (2003) 110 Cal.App.4th 1333, 1345.)

Nonetheless, "even in a county having a formal probate department, a non-probate department does not lack fundamental jurisdiction over a probate matter. Instead, ..., the probate department has 'primary' jurisdiction and a non-probate department 'secondary' jurisdiction of probate-related proceedings. [Citations.]" (*Harnedy, supra*, 110 Cal.App.4th at pp. 1344-1345; Prob. Code, § 17000, subd. (b); see *Capra v. Capra* (2020) 58 Cal.App.5th 1072, 1083-1084 [a superior court has fundamental jurisdiction to try a complaint that alleges causes of action for declaratory relief, conversion, breach of fiduciary duty, constructive trust, trespass to chattel, two counts of fraud and concealment, theft by false pretense, fraud and deceit, and negligent misrepresentation, even where the complaint includes allegations regarding the probate of an estate].)

The *Harnedy* court explained that, in the event a non-probate department entertained a matter within the exclusive jurisdiction of the probate court jurisdiction, that court may be acting "in excess of its jurisdiction," but it did not lack fundamental, or subject matter, jurisdiction over

the matter. (*Harnedy, supra*, 110 Cal.App.4th at pp. 1344-1345; In accord, *Soria v. Soria* (2010) 185 Cal.App.4th 780, 787, fn. 3.) Thus, where an action or proceeding merely involves a trust, trustee, or third parties, the probate department is one authority before which the matter may be litigated. In other words, the probate court's jurisdiction may be concurrent with that of the superior court sitting in civil actions. Accordingly, a third-party claimant may bring an independent civil action, e.g. to quiet title. (See, *Richer v. Superior Court (Cook)* (1976) 63 Cal.App.3d 748, 757 [disapproved on other grounds by *Kowis v. Howard* (1992) 3 Cal.4th 888, 899])

Here the complaint contains two causes of action: (1) intentional infliction of emotional distress, and (2) quiet title. The complaint lists the acts Defendant allegedly committed to intentionally inflict Plaintiffs' emotional distress and to obtain the full ownership of the Subject Property. As such, the complaint seeks damages for emotional distress and a judgment awarding John Navarro and non-party, Frank Navarro Jr., their interest in the Subject Property, which is currently held in two trusts.

The complaint implicates two express trusts, recorded transfers of the property to those trusts, actions taken under a conservatorship order, and Defendant's asserted roles as trustee and former conservator. The judicially noticed materials establish that a probate court authorized Defendant to execute John Navarro, Sr.'s trust and will and to transfer his property interest to the trust. They also show recorded deeds purporting to place each parent's one-half interest in a separate revocable trust.

These facts create a substantial connection to trust administration. To the extent the complaint seeks to set aside the substituted-judgment order, challenge a trustee's authority, invalidate a trust provision, determine beneficiaries under the trusts, or direct the trustee in administering trust assets, those matters fit within the internal-affairs framework described in Probate Code sections 17000 and 17200. Indeed, Plaintiffs expressly acknowledge and concede in their opposition that their claim for quiet title relates to Defendant's actions as conservator and trustee, while arguing that these actions were unlawful. (Opposition at 2:1-3)

However, this conclusion does not establish that the civil department lacks subject matter jurisdiction. Probate Code section 17000(b) expressly gives this Court concurrent jurisdiction over actions involving trustees and third person and proceedings to determine the existence of trust.

Therefore, the relevant question is whether the pleaded claims are actually internal matters of trust administration requiring treatment in the probate proceeding or whether they include a third-party title dispute within concurrent superior court – sitting in civil actions - jurisdiction. The complaint does not expressly seek a declaration invalidating either trust, annulment of the substituted-judgment order, removal of Defendant as trustee, or instructions concerning trust administration. It alleges quiet title on the assertion that Defendant obtained title through forged or invalid documents. This distinction is critical. Such a claim is adverse to Defendant's asserted trustee-held title and is not necessarily limited to supervision of internal administration.

Accordingly, Defendant's demurrer on this ground is OVERRULED.

B. Intentional Infliction of Emotional Distress (“IIED”)

The elements of intentional infliction of emotional distress are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Smith v. BP Lubricants USA Inc.*, (2021) 64 Cal. App. 5th 138, 147.)

Conduct to be outrageous must be so extreme as to exceed all bounds of that usually

tolerated in a civilized community. Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. (*Ibid*)

Defendant challenges Plaintiffs' IIED claim contending it fails to allege sufficient facts establishing outrageous conduct, intent to cause emotional distress, and causation. Defendant emphasizes that her actions were not outrageous since they were taken pursuant to the probate court's order as the conservator and trustee for her parents. (Demurrer at 9:6-22)

The complaint alleges multiple acts by Defendant that Plaintiffs contend constitute IIED: hospital/medical facility access restriction, forgery of Ramona Navarro's name and signature, Forgery of John Navarro Sr.'s name and signature, and financial misconduct. The complaint alleges Defendant instructed medical facility staff not to permit Plaintiffs to visit Ramona Navarro during her final illness, permanently depriving them of the opportunity to see her while alive. In the interim, Defendant forged Ramona Navarro's name and signature to obtain a reverse mortgage and siphon money from her assets. (Complaint ¶ 9)

If adequately pleaded, intentionally isolating a person from a dying parent or a person whose particularly close relationship is known to the defendant could support an inference of conduct exceeding socially tolerated bounds, intent or reckless disregard, and causation. The alleged use of authority or control over access to a vulnerable person may also bear on whether conduct is sufficiently outrageous.

However, the complaint's allegations lack the specificity required to survive demurrer for the following reasons:

1. The complaint does not allege facts establishing why Defendant's instructions to medical staff were improper or unauthorized. It does not allege that Defendant lacked legal authority to control visitation as conservator or trustee. It does not allege the specific dates, locations, or circumstances of the alleged exclusions with sufficient detail. The complaint states that preventing someone from seeing a dying mother "must necessarily constitute extreme and outrageous conduct," but this is a legal conclusion rather than a factual allegation.
2. The complaint's allegations concerning Plaintiff Emalu Clemons are particularly deficient. The Complaint contains no facts concerning Clemons' relationship to the decedent, why Clemons should be allowed to see Ramona Navarro in the hospital, or why preventing her from visiting would be outrageous. While Clemons' inadmissible declaration presents a 52-year friendship with Ramona Navarro and states she lived with her for several years, these facts are not in the complaint itself. On demurrer, the court considers only the face of the pleading.
3. The complaint also alleges a pattern of forging signatures, filing false documents with the court, and other misconduct. However, these allegations are largely pleaded on information and belief without factual support, and many concern actions taken in Defendant's capacity as court-appointed conservator and trustee pursuant to probate court orders. Lawful actions taken pursuant to court authorization, even if they resulted in emotional distress, do not constitute outrageous conduct as a matter of law.
4. The complaint lacks factual allegations describing the nature, severity, or duration of the emotional distress allegedly suffered. Severe emotional distress means distress of such substantial quality or enduring quality that no reasonable person in civilized society

should be expected to endure it. The complaint's conclusory allegation of "extreme emotional distress" is insufficient without factual support.

Accordingly, Defendant's demurrer to the first cause of action is SUSTAINED WITH LEAVE TO AMEND.

C. Quiet Title

Code of Civil Procedure section 761.020 states a complaint for quiet title:

"[S]hall be verified and shall include all of the following: (a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any. (b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession. (c) The adverse claims to the title of the plaintiff against which a determination is sought. (d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought. (e) A prayer for the determination of the title of the plaintiff against the adverse claims."

(Code. Civ. Proc. § 761.020)

Here, the demurrer does not separately challenge the quiet title cause of action on grounds other than subject matter jurisdiction. As analyzed above, the civil department has concurrent jurisdiction to determine the validity and existence of trusts.

Defendant's reply now raises a new argument that this claim and Frank Navarro Jr.'s role are uncertain. However, "[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.)

Moreover, this Defendant's reply does not cure her original demurrer's failure to separately state the applicable ground and identify the cause of action to which it applies. Rule of Court, rule 3.1320(a) requires that specificity. For this reason, the Court cannot sustain the existing demurrer to quiet title for pleading defects not stated.

The Court, nonetheless, acknowledges that this claim is uncertain as it fails to state the basis for John Navarro's claimed interest. The complaint refers to a purported 2004 will – last will and testament of decedent John Navarro Sr. – and Ramona Navarro's intestate interest but does not clearly allege the chain of title, the asserted proportion of ownership, the legal basis for succession, or whether any estate representative, trust, or all person with known recorded claims are parties.

The complaint is also internally inconsistent about party status. The caption identifies John Navarro and Clemons as Plaintiffs, but the quiet title claim and prayer seek affirmative ownership relief for Frank Navarro Jr., who is not a named plaintiff. Clemons is a named plaintiff but is not alleged to hold an ownership interest in the Subject Property. These discrepancies create uncertainty about who asserts title and whether all claimants whose rights Plaintiffs seek to adjudicate are properly before the court.

The Court will permit amendment of this claim should Plaintiffs elect to amend their IIED claim since an amended complaint itself must comply with quiet title pleading requirements and consistently identify all persons asserting or holding an adverse interest.

Accordingly, Defendant's demurrer to the second cause of action for quiet title is

OVERRULED.

VI. Conclusion & Order

Defendant's demurrer to the first cause of action for IIED is SUSTAINED WITH LEAVE TO AMEND.

Defendant's demurrer to the second cause of action for quiet title is OVERRULED.

SO ORDERED.

- oo0oo -

Calendar Lines 2-3

Hearing on Demurrer and Motion to Strike

Case Name: *Evershine I, L.P. v. Com Tam Thien Huong et al.*

Case No.: 26CV484278

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Defendants, Com Tam Thien Huong II (“Huong II”), Hien Chung Nguyen (“Nguyen”) and Lin Sau Su (“Su”) (collectively, “Moving Defendants”) demur to each cause of action in plaintiff Evershine I, L.P.’s (“Plaintiff”) complaint on the ground the claims fail to state facts sufficient to constitute a cause of action. (Notice of Demurrer (“Demurrer”) at p. 2:4-13 [filed: April 8, 2026].) Moving Defendants additionally move to strike portions of the complaint. (Notice of Motion to Strike (“Motion”) at pp. 2-3 [filed: April 8, 2026].)

The motions came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows:

Factual and Procedural Background

Plaintiff initiated this action against defendants Com Tam Thien Huong dba Pho Thien Huong (“Huong”); Nguyen; Su; Pho Thien Huong Corporation (“Huong Corp.”); Trung Steven H. Ngo (“Ngo”); and Huong II (collectively, “defendants”). According to the allegations of the complaint, Plaintiff owns and leases commercial property (“Subject Property”) located in San Jose, California. (Complaint, ¶ 1.) Huong, Huong Corp., and Huong II were Tenants of the Subject Property. (Complaint, ¶ 10.) Nguyen and Su executed a personal guaranty of the Tenants’ lease obligations regarding the Subject Property. (Complaint, ¶¶ 3-4.)

On June 18, 2008, Plaintiff entered into a lease (“the Lease”) with Ket Van Huynh, dba Phu Sam Restaurant for commercial space located at the Subject Property. (Complaint, ¶ 16.) The Lease was for 4 years, from July 1, 2010 to June 30, 2014. (*Ibid.*; Ex. A.) On March 7, 2014, Plaintiff and Huong entered into the assignment of the Lease (“the Assignment”) and all rights under the Lease were assigned by Phu Sam Restaurant and assumed by Huong and effective from May 2014 to October 2019. (Complaint, ¶ 17; Ex. B.) Also on March 7, 2014, moving defendants Nguyen and Su entered into a Guaranty of Lease that unconditionally guaranteed the full performance of Huong’s obligations under the Lease. (Complaint, ¶ 18.)

On December 6, 2017, Ngo, Nguyen, Huong II submitted a lease proposal to Plaintiff to operate the sandwich business out of the Subject Property. (Complaint, ¶ 27.) After the Lease expired in October 2019, Tenants continued occupying the Subject Property on a month-to-month basis through May 2024 at a rate of \$13,507.80 per month, plus operating expenses, but did not pay any holdover rent. (Complaint, ¶ 28.) Despite lease proposals, Tenants refused to execute an amended lease with Plaintiff. (Complaint, ¶¶ 29, 30.)

On May 2, 2024, without any notice, permit, or consent, defendants conducted extensive demolition work at the Subject Property. (Complaint, ¶ 31.) On May 13, 2024, the landlord conducted an inspection of the Subject Property with Nguyen and documented the extensive damage caused by the unauthorized demolition. (Complaint, ¶ 32.) On May 17, 2024, Plaintiff’s counsel sent Tenants notice of breach of lease and a demand for rent payment and Tenants’ counsel responded with a demand that Plaintiff return a portion of the security deposit. (Complaint, ¶ 33; Ex. C.)

On June 6, 2024, Tenants vacated the Subject Property with \$550,00 in damages. (Complaint, ¶ 34.) Tenants additionally failed to pay rent in May and June 2024. (Complaint, ¶ 35.) On October 3, 2024, Plaintiff's counsel sent Tenants' counsel a Notice of Default and Continuing Breach of Lease but Tenants and Guarantors have failed to honor their obligations under the Lease and Guaranty. (Complaint, ¶ 36; Ex. D.)

On January 12, 2026, Plaintiff initiated this action, asserting the following claims:

- 1) Breach of Commercial Lease;
- 2) Breach of Personal Guaranty; and
- 3) Conversion.

On April 8, 2026, Moving Defendants filed a demurrer and motion to strike portions of the complaint. Plaintiff opposes the motion.

Demurrer

I. Legal Standard on Demurrer

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

II. Second Cause of Action: Breach of Personal Guaranty

“A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (*Grayl CPB, LLC v. Kolodotronis* (2011) 202 Cal.App.4th 480, 486 citing *Torrey Pines Bank v. Superior Court* (1986) 216 Cal.App.3d 813, 819.)

Moving Defendants contend that the second claim fails because there was no extension of the Lease beyond October 31, 2019, and therefore, the Guaranty is not effective. (Demurrer, p. 6:10-13.) In opposition, Plaintiff argues that the Guaranty remained in effect during lease modifications such as lease extensions and month-to-month holdover periods. (Opposition, p. 5:7-9, citing *Central Building, LLC v. Cooper* (2005) 127 Cal.App.4th 1053, 1060-1061 (*Cooper*).)¹

Here, the plain language of Article 4 of the Assignment, states: “As a condition to allow Assignee to assume the Lease, Assignee has included the attached Guarantor as provided in Exhibit B **through the natural expiration of the Lease**, which is July 31, 2014 **and any extensions thereof**.” (Complaint, Ex. B, Article 4 [emphasis added].) Nguyen and Su are listed as the guarantors under the Assignment. (*Id.* at Article 7.) Further, the Assignment includes an Exhibit B – Guaranty of Lease, which includes the following language: “for and in consideration of the execution of the Lease by Landlord and as a material inducement to Landlord to execute said Lease, Guarantor hereby unconditionally and irrevocably guaranties the performance by Assignee of each and every one of the terms, conditions and covenants of the Lease to be kept and performed by Assignee **during the term of the Lease** (including,

¹ The opposition incorrectly cites 177 Cal.App.4th 1053, 1060-1061.

without limitation, the payment by Assignee of all Rentals (as defined below) and other sums payable by Assignee under the Lease) . . .” (Complaint, Ex. B [emphasis added].) Finally, the Guaranty of Lease states: “Guarantor’s liability under this Guaranty shall continue until all Rentals **and other sums due during the term of the Lease** have been paid in full and until all other obligations to Landlord have been satisfied.” (*Ibid.*)

In this case, the alleged conduct that violated the Lease/the Assignment occurred after the Lease term ended in October 2019. (See Complaint, ¶¶ 30-33.) The conduct included: extensive demolition work and failing to pay rent in May and June 2024. (See Complaint, ¶¶ 31, 32, 34, 35.) With that said, the Assignment also states that the Lease/Assignment still applies to a month-to-month tenancy:

17.4. Holding Over. If Tenant, with Landlord's consent, remains in possession of the Premises after expiration of the term, or extension thereof, such possession by Tenant shall be deemed to be a month-to-month tenancy terminable on 30 days notice given at any time by either party. **All provisions of this Lease**, except those pertaining to term, and option to extend, **shall apply to the month-to-month tenancy**, provided that the minimum monthly rent shall be two hundred percent (200%) of the minimum monthly rent in effect immediately prior to said expiration.

(See Complaint, Ex. A, § 17.4 [emphasis added]; *Cooper, supra*, 127 Cal.App.4th at p. 1058 [“When a guaranty agreement incorporates another contract, the two documents are read together and construed fairly and reasonably as a whole according to the intention of the parties.”][internal quotations omitted].)

In their demurrer, Moving Defendants argue that, “absent very clear language,” the month-to-month tenancy is not an extension of the lease and should not be considered a holdover. (Demurrer, p. 7:6-9, citing Civ. Code § 1945; *Bloom v. Bender* (1957) 48 Cal.2d 793, 798 (*Bloom*).) *Bloom* is inapposite. There, the Supreme Court addressed, in part, whether the running of statute of limitations against a principal bars the action against the guarantor, and determined that “in California, the obligation of defendant on her continuing guarantee is not barred merely because the statute of limitations had run against the obligation of the principal debtor[.]” (*Bloom, supra*, 798.) Civil Code section 1945 indicates that a holding over is a continuation of possession under the lease. (See *Knox v. Wolfe* (1946) 73 Cal.App.2d 494, 502.) Further, many California courts hold that an “extension” is a continuation in possession under the lease, after notice under its provisions. (See *Oryx Energy Co. v. County of Kern* (1993) 17 Cal.App.4th 48, 59.) However, whether the Lease was extended is a question of fact not properly decided on demurrer.

Thus, based on the language of the agreements at issue, and the allegations of the pleading, Plaintiff sufficiently alleges a claim for breach of personal guaranty. (See *Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787 [“In considering the merits of a demurrer, the facts alleged in the pleading are deemed true . . .”].)

Accordingly, the demurrer to the second cause of action is **OVERRULED**.

III. First and Third Causes of Action

Moving Defendants next argue that the Complaint fails to allege facts to support any claim against Huong II because the alter ego allegations are insufficient. (Demurrer, p. 9:22-26.)

When pleading alter ego liability, particularity is not required; instead, it is sufficient for a plaintiff to plead (1) such a unity of interest and ownership that the separate personalities of the corporation and the individuals do not exist, and (2) an inequity will result if the corporate entity is treated as the sole actor. (See *Stodd v. Goldberger* (1977) 73 Cal.App.3d

827, 832.) Therefore, a party is only required to allege ultimate rather than evidentiary facts in support of an alter ego theory. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236.)

In opposition, Plaintiff argues that the pleading alleges: 1) Huong II submitted a lease proposal on behalf of Huong Corp. concerning operation of the Subject Property; 2) defendants acted as agents, representatives, servants, employees, and associates of one another; 3) defendants operated as alter egos of one another; and 4) defendants collectively participated in the conduct giving rise to Plaintiff's damages. (Opposition, p. 9:14-20.)

The Court finds Plaintiff's argument persuasive. First, the claims against Huong II do not merely rely on alter ego liability. Furthermore, the pleading refers to Huong II as one of the "Tenants" and there are numerous allegations throughout the Complaint related to the Tenants. (E.g., Complaint, ¶¶ 10, 28, 32, 34, 35.)

The demurrer to the first and third causes of action is **OVERULED**.

Motion to Strike

IV. Legal Standard on Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, a court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Clauson v. Superior Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

V. Discussion

Moving Defendants seek to strike the following portions of the Complaint:

- 1) Paragraph 44. ". . . (e) failing to timely pay holdover rent as of November 1, 2019. . ."
- 2) Paragraph 46. ". . . (e) holdover rent from November 1, 2019 through June 30, 2024 estimated to be in excess of \$750,000. . ."
- 3) Paragraph 47. "As a direct and proximate result of Guarantors' breach of the Guaranty, . . . Paragraph 14 of the Guaranty. . ."
- 4) Paragraph 46. ". . . (e) holdover rent from November 1, 2019 through June 30, 2024 estimated to be in excess of \$750,000 . . ."

Moving Defendants arguments in support of their motion to strike are essentially the same as those raised in their demurrer. Given the Court's ruling above, the motion to strike is **DENIED** in its entirety.

Conclusion and Order

The demurrer to the first, second, and third causes of action is **OVERRULED**. The motion to strike Items 1-4 is **DENIED**.

SO ORDERED.

Calendar line 4

Motion For Order to Comply with Deposition Subpoena

Case Number: 23CV415280

Haghighi v. City of Mt View et al.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The Motion of Defendants Mountain View Los Altos Union High School District, Nellie Meyer, Kip Glazer, Marti McGuirk, Achilles Walker, and the other moving Defendants for an order compelling compliance with a deposition subpoena for production of business records and for monetary sanctions came on for hearing before the Court. Having considered the motion, supporting papers, opposition, if any, reply, the records and files in this action, and the arguments of counsel, the Court rules as follows:

I. Plaintiff Has Placed His Mental and Emotional Condition at Issue

Plaintiff alleges that Defendants' conduct caused him substantial mental and emotional injuries. His operative complaint affirmatively alleges anxiety, stress, psychological discomfort, impaired sleep, emotional trauma, embarrassment, helplessness, isolation, and other claimed psychological and emotional harm. Plaintiff further alleges that this emotional and psychological harm constitutes damages resulting from Defendants' alleged conduct.

By affirmatively placing his mental and emotional condition at issue, Plaintiff has placed the nature and extent of those conditions, their causation, and the treatment he received for them at issue in this litigation.

Evidence Code section 1016, subdivision (a), provides that there is no privilege as to a communication relevant to an issue concerning the patient's mental or emotional condition if that issue has been tendered by the patient. The Court therefore finds that Plaintiff has tendered his mental and emotional condition as an issue in this action and that the psychotherapist-patient privilege does not preclude discovery of treatment records that are relevant to the claims and damages Plaintiff has placed at issue.

The Court does not find that Plaintiff has thereby waived any and all privacy protections with respect to every conceivable medical or psychological record. Rather, the production ordered below is limited to responsive records within the scope of the subpoena and relevant to the claims and issues Plaintiff has placed before the Court.

II. The Subpoena Was Properly Served and Has Not Been Answered

Defendants served a deposition subpoena for production of business records on Jeong Therapy Group seeking Plaintiff's treatment records relating to the claims asserted in this action. The subpoena identified December 31, 2025 as the compliance date.

Plaintiff subsequently informed Defendants that he had directed Jeong Therapy Group not to produce the requested treatment records absent a specific court order. Jeong Therapy Group thereafter did not produce the responsive records, serve objections, or provide a statement of inability to comply.

The Court finds that Defendants made the required efforts to meet and confer before bringing the motion. The record further establishes that Defendants attempted for an extended period to obtain compliance before seeking judicial intervention. The motion papers reflect that the efforts to obtain the records extended over more than two months, including repeated representations that the records would be produced before Plaintiff ultimately directed Defendants to seek a court order.

III. An Order Compelling Production Is Warranted

A deposition subpoena for production of business records requires the custodian of records to produce the documents specified in the subpoena or otherwise respond as required by law. Where responsive documents are not produced and no valid objection or statement of inability to comply has been served, the requesting party may seek an order compelling compliance.

Here, the Court finds that the requested treatment records are relevant to issues Plaintiff has affirmatively placed in controversy, including his allegations of mental and emotional injury and the nature, extent, and causation of those claimed injuries.

The Court further finds that Plaintiff's direction to Jeong Therapy Group not to comply with the subpoena, coupled with the absence of any timely objection or other legally sufficient response from the subpoenaed entity, has prevented Defendants from obtaining relevant discovery.

Accordingly, the motion to compel is **GRANTED**.

IV. Monetary Sanctions

Defendants also seek monetary sanctions in the amount of \$4,950. Defendants represent that this amount includes approximately 16.5 hours of attorney time associated with preparing the present motion and a prior ex parte application seeking to have the motion heard on an expedited basis, as well as an anticipated three hours to respond to a reply brief.

The Court finds that monetary sanctions are appropriate. Plaintiff placed his mental and emotional condition directly at issue, yet thereafter prevented the subpoenaed treatment provider from producing records relevant to those claims. The Court does not find that Plaintiff acted reasonably in requiring Defendants to obtain a court order to secure production after the extended efforts to obtain the records voluntarily.

The Court nevertheless finds the requested amount excessive under the circumstances presented. There has been substantial motion practice in this action, and the Court finds that some duplication of effort has occurred. Although Defendants spent more than two months attempting to obtain compliance, the Court finds that **nine hours** of attorney time is a reasonable amount to compensate Defendants for preparation of the present motion. The Court does not award fees for the prior ex parte application to advance the hearing, particularly because the Court denied that application. The Court also does not award the three hours requested for preparation of a response to a reply brief, because Plaintiff did not file a reply.

Accordingly, the Court finds that sanctions in the amount of:

9 hours × \$300 per hour = \$2,700

are reasonable and appropriate.

Pursuant to Code of Civil Procedure section 2025.480, subdivision (j), the Court therefore awards Defendants monetary sanctions in the amount of **\$2,700** against Plaintiff.

V. Disposition

The Court therefore ORDERS as follows:

1. Defendants' Motion to Compel Compliance with Deposition Subpoena for Production of Business Records is **GRANTED**.
2. Jeong Therapy Group shall comply with the deposition subpoena and produce the responsive treatment records within **[10] days** of service of this Order, or within such other period as the Court specifies.
3. The production shall be limited to records responsive to the subpoena and relevant to Plaintiff's claims and allegations concerning his mental and emotional condition, treatment, and claimed injuries arising from the conduct alleged in this action.
4. Monetary sanctions in the amount of \$2,700 are awarded to Defendants as set forth above.
5. The sanctions shall be paid to Defendants, through their counsel of record, within **30 days** after service of notice of entry of this Order.
6. Nothing in this Order shall be construed as requiring disclosure of records outside the scope of the subpoena or records unrelated to the mental and emotional injuries Plaintiff has placed at issue in this action.

Calendar Line 5

Vortex Industries' Motion to Compel Responses to Special Interrogatories

Case: 25CV474504

ABIOYE v. CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 5: VORTEX INDUSTRIES' Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant served the subject discovery on Plaintiff on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve code-compliant responses.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff has submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for the moving Defendant.

Counsel for Defendant represents that no code-compliant responses to the subject discovery were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff has failed to provide timely, code-compliant responses to the discovery at issue.

Accordingly, **VORTEX INDUSTRIES' Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE is GRANTED.**

Plaintiff is ordered to serve verified, code-compliant responses to the subject discovery, without objections to the extent objections have been waived by Plaintiff's failure to timely respond, within **[30] days** after service of notice of entry of this Order.

VI. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the discovery necessitated the filing and hearing of this motion. Monetary sanctions are therefore warranted pursuant to the applicable provisions of the Code of Civil Procedure.

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards of the full amount requested for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour**, together with any recoverable filing fee, to be a reasonable amount attributable to this motion. Accordingly, Defendant **VORTEX INDUSTRIES** is awarded **\$375.00 in monetary sanctions** against Plaintiff.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.
IT IS SO ORDERED.

- oo0oo -

Calendar Line 6
Vortex Industries' Motion to Compel Responses to Request for Production of Documents,
Set One
Case: 25CV474504
ABIOYE v. CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00
a.m. in Department 16, the Honorable Matthew S. Harris presiding:

**Line 6: VORTEX INDUSTRIES' MOTION TO COMPEL RESPONSES TO REQUEST
FOR PRODUCTION OF DOCUMENTS, SET ONE**

Defendant served Plaintiff with Requests for Production of Documents, Set One, on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve code-compliant responses to the Requests for Production. Plaintiff also has not established that he served code-compliant responses on counsel for Defendant.

Under Code of Civil Procedure section 2031.300, a party who fails to timely serve a response to a demand for inspection, copying, testing, or sampling waives any objection to the demand, including objections based on privilege or work product, unless the court, on motion, permits the responding party to assert such an objection.

The Court finds that Plaintiff has failed to timely respond to the Requests for Production and has not established good cause for permitting objections at this time. Accordingly, any objections to the Requests for Production that were waived by Plaintiff's failure to timely respond are deemed waived.

**Defendant VORTEX INDUSTRIES' Motion to Compel Responses to Requests for
Production of Documents, Set One, is GRANTED.**

Plaintiff shall, within **30 days after service of notice of entry of this Order**, serve verified, code-compliant responses to each of the Requests for Production, without objections to the extent objections have been waived.

To the extent a response states that responsive documents or other items will be produced, Plaintiff shall produce the responsive documents, tangible things, and electronically stored information in accordance with the requirements of Code of Civil Procedure section 2031.280.

If Plaintiff asserts that no responsive documents or other items exist or are within his possession, custody, or control, his response shall so state in a manner that complies with the applicable provisions of the Code of Civil Procedure.

VII. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Production necessitated Defendant's motion. Monetary sanctions are therefore warranted pursuant to Code of Civil Procedure section 2031.300(c).

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards based upon the full amount of time claimed for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour** to be a reasonable amount attributable to this motion. Accordingly, Defendant **VORTEX INDUSTRIES** is awarded **\$375.00 in monetary sanctions against Plaintiff Adedayo Abioye**.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

- oo0oo -

Calendar Line 7

Vortex Industries' Motion to Have Requests for Admission Deemed Admitted.

Case: 25CV474504

Abioye v Chapa and Vortex Industries

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The above matter came on regularly for hearing on September 16, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding: **LINE 7: Vortex Industries Motion to Have Requests for Admission Deemed Admitted.**

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant Vortex Industries, LLC served Requests for Admission, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve responses to the Requests for Admission. Plaintiff also did not serve, before the hearing, a proposed response substantially complying with Code of Civil Procedure section 2033.220.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for Defendant.

Counsel for Defendant represents that no code-compliant responses to the Requests for Admission were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff failed to timely serve responses to the Requests for Admission.

VIII. Requests for Admission

Under Code of Civil Procedure section 2033.280, a party who fails to timely serve responses to requests for admission waives any objection to the requests, including objections based on privilege, unless the court permits the party to withdraw the waiver. Where the responding party has failed to serve a timely response, and has not served a proposed response substantially complying with section 2033.220 before the hearing, the court is required to order the matters specified in the requests deemed admitted.

Here, Plaintiff failed to timely respond to the Requests for Admission and did not serve a proposed response substantially complying with Code of Civil Procedure section 2033.220 before the hearing.

Accordingly, **Defendant Vortex Industries, LLC's Motion to Compel Responses to Requests for Admission, Set One, is GRANTED.**

The matters specified in Defendant Vortex Industries, LLC's Requests for Admission, Set One, are hereby **DEEMED ADMITTED** as to Plaintiff Adedayo Abioye.

The admissions shall have the effect provided by the California Code of Civil Procedure and shall remain binding unless withdrawn or amended pursuant to applicable law.

IX. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Admission necessitated Defendant's motion. Monetary sanctions are therefore warranted pursuant to Code of Civil Procedure section 2033.280(c).

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards based upon the full amount of time claimed for each motion would result in compensation for duplicative work. The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour** to be a reasonable amount attributable to this motion.

Accordingly, Defendant **Vortex Industries, LLC** is awarded **\$375.00** in monetary sanctions against Plaintiff **Adedayo Abioye**.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

X. Basis of Order

The Court's determination that the matters are deemed admitted is based upon Plaintiff's failure to timely respond to the Requests for Admission and the requirements of Code of Civil Procedure section 2033.280. The Court is not independently making factual findings concerning the truth of the matters admitted.

IT IS SO ORDERED.

- oo0oo -

Calendar Line 8
Vortex Industries' Motion to Compel Responses to Form Interrogatories.
Case: 25CV474504
Abioye v Chapa and Vortex Industries

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 8: VORTEX INDUSTRIES' Motion to Compel RESPONSES TO FORM INTERROGATORIES, SET ONE

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant served the subject discovery on Plaintiff on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve code-compliant responses.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff has submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for the moving Defendant.

Counsel for Defendant represents that no code-compliant responses to the subject discovery were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff has failed to provide timely, code-compliant responses to the discovery at issue.

Accordingly, **VORTEX INDUSTRIES' Motion to Compel RESPONSES TO FORM INTERROGATORIES, SET ONE is GRANTED.**

Plaintiff is ordered to serve verified, code-compliant responses to the subject discovery, without objections to the extent objections have been waived by Plaintiff's failure to timely respond, within **[30] days** after service of notice of entry of this Order.

XI. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the discovery necessitated the filing and hearing of this motion. Monetary sanctions are therefore warranted pursuant to the applicable provisions of the Code of Civil Procedure.

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards of the full amount requested for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour**, together with any recoverable filing fee, to be a reasonable amount attributable to this motion. Accordingly, Defendant **VORTEX INDUSTRIES** is awarded **\$375.00 in monetary sanctions** against Plaintiff.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

IT IS SO ORDERED.

Calendar line 9

Chapa's Motion to Compel responses to Special Interrogatories, Set One

Case: 25CV474504

ADEDAYO ABIOYE v. CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 9: ABRAHAM CHAPA'S Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant served the subject discovery on Plaintiff on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve code-compliant responses.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff has submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for the moving Defendant.

Counsel for Defendant represents that no code-compliant responses to the subject discovery were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff has failed to provide timely, code-compliant responses to the discovery at issue.

Accordingly, **ABRAHAM CHAPA'S Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE is GRANTED.**

Plaintiff is ordered to serve verified, code-compliant responses to the subject discovery, without objections to the extent objections have been waived by Plaintiff's failure to timely respond, within **[30] days** after service of notice of entry of this Order.

XII. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the discovery necessitated the filing and hearing of this motion. Monetary sanctions are therefore warranted pursuant to the applicable provisions of the Code of Civil Procedure.

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards of the full amount requested for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour**, together with any recoverable filing fee, to be a reasonable amount attributable to this motion. Accordingly, Defendant **ABRAHAM CHAPA** is awarded **\$375.00 in monetary sanctions** against Plaintiff.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.
IT IS SO ORDERED.

- oo0oo -

Calendar line 10

Chapa's Motion to Compel Responses to Request for Production of Documents

CASE: 25CV474504

ABIOYE v, CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 10: ABRAHAM CHAPA'S MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Defendant served Plaintiff with Requests for Production of Documents, Set One, on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve code-compliant responses to the Requests for Production. Plaintiff also has not established that he served code-compliant responses on counsel for Defendant.

Under Code of Civil Procedure section 2031.300, a party who fails to timely serve a response to a demand for inspection, copying, testing, or sampling waives any objection to the demand, including objections based on privilege or work product, unless the court, on motion, permits the responding party to assert such an objection.

The Court finds that Plaintiff has failed to timely respond to the Requests for Production and has not established good cause for permitting objections at this time. Accordingly, any objections to the Requests for Production that were waived by Plaintiff's failure to timely respond are deemed waived.

Defendant ABRAHAM CHAPA'S Motion to Compel Responses to Requests for Production of Documents, Set One, is GRANTED.

Plaintiff shall, within **30 days after service of notice of entry of this Order**, serve verified, code-compliant responses to each of the Requests for Production, without objections to the extent objections have been waived.

To the extent a response states that responsive documents or other items will be produced, Plaintiff shall produce the responsive documents, tangible things, and electronically stored information in accordance with the requirements of Code of Civil Procedure section 2031.280.

If Plaintiff asserts that no responsive documents or other items exist or are within his possession, custody, or control, his response shall so state in a manner that complies with the applicable provisions of the Code of Civil Procedure.

XIII. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Production necessitated Defendant's motion. Monetary sanctions are therefore warranted pursuant to Code of Civil Procedure section 2031.300(c).

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards based upon the full amount of time claimed for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour** to be a reasonable amount attributable to this motion.

Accordingly, Defendant **ABRAHAM CHAPA** is awarded **\$375.00 in monetary sanctions against Plaintiff Adedayo Abioye.**

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

- oo0oo -

Calendar line 11
Plaintiff's Motion to Vacate
Case Number: 22CV404562
Miletak v. Manpower Group US, Inc.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

The Court, having considered Plaintiff's Motion to Vacate Judgment, Plaintiff's Amended Motion to Vacate Judgment, Defendant's opposition thereto, the record in this action, and the arguments presented, hereby ORDERS as follows:

XIV. Procedural History

On August 28, 2023, the Court entered an order sustaining Defendant's Motion to Strike Plaintiff's First Amended Complaint in its entirety. Plaintiff appealed that judgment on September 15, 2023. Plaintiff thereafter requested dismissal of his appeal, and that request was granted on October 16, 2024.

On December 5, 2024, the Court dismissed Plaintiff's claims with prejudice and ordered Plaintiff to pay Defendant's costs.

Plaintiff thereafter filed his Motion to Vacate Judgment on September 11, 2025. Plaintiff filed his Amended Motion to Vacate Judgment on March 27, 2026.

XV. The Motion Is Untimely Under the Applicable Statutory Provisions

The Court finds that Plaintiff's motions were not brought within the applicable statutory periods.

Code of Civil Procedure section 663a provides a limited period in which a motion to vacate a judgment may be made. Plaintiff did not file his first Motion to Vacate until September 11, 2025, more than nine months after the December 5, 2024 judgment. His Amended Motion to Vacate was filed March 27, 2026, more than fifteen months after entry of judgment.

To the extent Plaintiff seeks relief under Code of Civil Procedure section 473(b), the Court likewise finds that the statutory requirements have not been satisfied.

The Court therefore finds that Plaintiff's requests for statutory relief were not timely made.

XVI. Plaintiff's Motion Is Also Barred by the Time Limits Governing an Appeal

Plaintiff previously appealed the Court's August 28, 2023 order. The appeal was subsequently dismissed at Plaintiff's request on October 16, 2024.

California Rules of Court, rule 8.104 establishes the time within which a notice of appeal must be filed. Plaintiff cannot use a later motion to vacate to circumvent the applicable time limits for appellate review of the underlying order.

The Court therefore finds no basis under rule 8.104 for granting the present motion.

XVII. Code of Civil Procedure Section 473 Does Not Provide a Basis for Relief

Plaintiff also invokes Code of Civil Procedure section 473. The Court finds that section 473 does not provide a basis for the relief requested.

Plaintiff did not seek relief within the applicable six-month period following entry of the December 5, 2024 judgment. In addition, the facts presented do not establish a basis for relief under the mandatory or discretionary provisions of section 473 that would permit the Court to disregard the applicable statutory time limits.

Accordingly, relief under Code of Civil Procedure section 473 is denied.

XVIII. Res Judicata

The Court further finds that Plaintiff's claims for relief are barred by principles of claim preclusion.

The matters Plaintiff seeks to have revisited arise from the same underlying action and proceedings that resulted in the prior orders and final judgment. Plaintiff had the opportunity to litigate those matters and to seek appellate review. He in fact pursued an appeal and thereafter voluntarily dismissed it.

The present motion does not provide a basis for relitigating matters that have already been finally determined. Accordingly, to the extent Plaintiff's motion seeks to relitigate claims or issues previously determined in this action, relief is barred by res judicata and related principles of finality.

XIX. Plaintiff Had an Opportunity to Pursue Appellate Review

The Court further finds that Plaintiff was not deprived of an opportunity to seek appellate review.

Plaintiff filed an appeal from the August 28, 2023 order. He thereafter voluntarily requested dismissal of that appeal, and the request was granted on October 16, 2024. The Court does not find that Plaintiff was prevented from pursuing appellate review by any circumstance outside his control. Rather, the record before the Court establishes that Plaintiff elected to dismiss the appeal that he had filed. The subsequent expiration of the applicable periods for seeking appellate review cannot be avoided by treating Plaintiff's later motion to vacate as a substitute for the appellate review that he elected not to pursue.

XX. No Equitable Basis Has Been Established

The Court has considered Plaintiff's request for equitable relief notwithstanding the applicable statutory time limits.

The circumstances presented here do not establish a basis for exercising such equitable authority.

Plaintiff had the opportunity to litigate his claims in this action. The Court sustained Defendant's demurrers, Plaintiff amended his pleading, Defendant's subsequent motion to strike was sustained, Plaintiff filed an appeal, and Plaintiff thereafter voluntarily dismissed that appeal. Following entry of the December 5, 2024 judgment, Plaintiff did not file his first motion to vacate until September 11, 2025.

The Court finds that these circumstances do not establish that Plaintiff was denied an opportunity to present his position or to seek appellate review. Nor has Plaintiff established circumstances warranting an equitable departure from the applicable statutory time periods.

The Court therefore declines to exercise its equitable authority to reopen the judgment.

XXI. Finality of the Judgment

The Court finds that the December 5, 2024 judgment is final and that Plaintiff may not use an untimely motion to vacate to obtain further review of issues that he had an opportunity to litigate and to pursue on appeal.

The Court has considered Plaintiff's arguments concerning subsequent appellate decisions. Those arguments do not provide a basis, on the facts presented, for reopening the final judgment after the expiration of the applicable statutory periods and after Plaintiff voluntarily dismissed his appeal.

XXII. Disposition

Accordingly, Plaintiff's **Motion to Vacate Judgment** and **Amended Motion to Vacate Judgment** are **DENIED**.

The December 5, 2024 judgment remains in full force and effect.

IT IS SO ORDERED.

- oo0oo -

Calendar line 12

Case Number: 23CV416455

Case Name: N. Charles Podaras vs Valerie Weirauch et al

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Pursuant to Code of Civil Procedure section 473(a)(1), Plaintiff moves for leave to file a second amended complaint ("SAC") on the grounds that "the SAC clarifies existing claims and adds closely related causes of action arising from the same transactions already pled; no party will suffer prejudice; and the amendment is in furtherance of justice." (Notice 1:24-26)

The Motion came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations & Procedural Background

Plaintiff alleges that pursuant to an oral agreement with Defendant Weirauch in early 2019, he moved into her home at 2402 Le Bain Drive, in San Jose ("Property"). In exchange he agreed to take care of the house and Weirauch's two dogs. (First Amended Complaint ("FAC"), Factual Allegations ¶¶ 2, 3)

Between April 28, 2022, and May 14, 2022, Weirauch took actions to remove Plaintiff from the Property, including multiple verbal and written demands, threats to call law enforcement, and termination of WiFi access and hot water pressure. (*Id.* ¶¶ 4-12).

On May 23, 2022, Plaintiff received notice of Weirauch's Civil Harassment Restraining Order/Temporary Restraining Order ("CHRO/TRO") legal proceeding against him. He discovered he was no longer allowed back in the home where his belongings were, including medication and medical devices. On October 25, 2022, the CHRO was denied and the TRO was lifted. Plaintiff was informed that his belongings were packed up in Weirauch's garage without Plaintiff's permission. (*Id.* ¶¶ 14, 15, 23, 25, 26.)

On November 18, 2022, Plaintiff visited the Property on an arranged appointment to get his belongings but was denied entry. On December 30, 2022, Plaintiff requested San Jose Police escort him to the Property to retrieve belongings. (*Id.* ¶¶ 29, 31.)

Plaintiff initiated this action on May 22, 2023, and subsequently amended his complaint on January 10, 2024. Plaintiff's FAC consists of two parts. First, the FAC includes Form PLD-PI-001 and checks two causes of action for general negligence and intentional tort. (FAC: Form Complaint.) The general negligence claim includes form attachment stating additional facts, but the intentional tort claim does not include any attachments. Second, the FAC also includes "Factual Allegations" on separate pleading paper and elaborates on the events giving rise to this action. (FAC: Factual Allegations.)

After listing the relevant facts the FAC indicates "THIS IS INCOMPLETE TO BE PROVIDED" but goes on to state three separate counts. (FAC, Factual Allegations at p. 7:6-7.) Count 1 conflates three causes of action together: "violation of § 789.3," trespass to chattels, and conversion. (*Id.* at p. 7:8-15.) Count 2 is for "violation of § 1940.2 harassment: interference with

quiet enjoyment," and Count 3 is for "violation of § 1942.5 harassment: no harassing after tenant has asserted rights under law." (*Id.* at p. 7: 16-24.)

On July 8, 2024, the Court sustained Vickrey's and Dyslin's demurrer to the FAC without leave to amend and dismissed the action against them. On June 20, 2025, the Court sustained, in part, Weirauch's demurrer to the FAC with leave to amend his claim for intentional tort and counts 2 and 3 within 20 days commencing April 9, 2025. Plaintiff did not file an amended pleading in the allotted time. Instead, approximately five months later, Plaintiff filed his motion for leave to file a second amended complaint.

II. Legal Standard

Under the California Rules of Court 3.1324, a motion to amend a pleading must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments, and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (Cal. Rules of Court, rule 3.1324(a).) The motion must also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

California appellate precedent instructs that "Courts must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown." (*Duchrow v. Forrest* (2013) 215 Cal. App. 4th 1359, 1377 (citing *P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345).) In this context, prejudice exists where the amendment would result in a delay of trial, added costs of preparation, and increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 468-488; see also *P&D Consultants Inc., supra*, 190 Cal. App. 4th at 1345 ("even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.") (leave to amend properly denied where Plaintiff knew for over five months claims had not been properly pleaded and took no action to amend until after summary judgment granted against it.)

Regarding permitting amendments to the pleadings during trial, Code of Civil Procedure Section 469 authorizes the Court to allow pleadings to be amended to conform to proof at trial: "Variance between the allegations in a pleading and the proof shall not be 14 deemed material, unless it has actually misled the adverse party to his or her prejudice in maintaining his or her action or defense upon the merits. If it appears that a party has been so misled, the court may order the pleading to be amended, upon such terms as may be just. (Code. Civ. Proc. § 469.)

As explained by our California Supreme Court:

[T]he allowance of amendments to conform to the proof rests largely in the discretion of the trial court and its determination will not be disturbed on appeal unless it clearly appears that such discretion has been abused. . . .

Such amendments have been allowed with great liberality 'and no abuse of discretion is shown *unless by permitting the amendment new and substantially different issues are introduced in the case or the rights of adverse party prejudiced.* . . .'

(*Trafton v. Youngblood* (1968) 69 Cal. 2d 17, 31 (quoting *McNamara v. Steckman*, (1927) 202 Cal. 569, 572 (emphasis added by *Trafton*)).

III. Analysis

While this Court routinely grants motions for leave to amend in accordance with the general liberal amendment policy of California law, in this case and under these circumstances the Court DENIES, WITHOUT PREJUDICE, the motion for failure to comply with California

Rule of Court, rule 3.1324(a) and (b).

First, Plaintiff's motion was originally accompanied by a sperate Exhibit List that consisting of his second amended complaint. (Exhibit A) The clerk's office erroneously filed the second amended complaint. Consequently, the Court ordered the second amended complaint to be stricken and directed Plaintiff to "resubmit the document with a cover sheet indicating the document as a Proposed Amended Complaint." (Minute Order, September 17, 2025) Plaintiff has failed to resubmit his proposed second amended complaint and thus, as it stands, his motion is not accompanied by an amended pleading.

Second, neither the motion nor the supporting declaration of James L. Arrasmith specify what allegations in the FAC are proposed to be deleted or added, and where - by page, paragraph, and line number - the allegations are located. Instead, James Arrasmith vaguely declares:

What is being amended: The SAC clarifies factual allegations and pleads the following causes of action: (1) Wrongful Eviction/Lockout (Civ. Code § 789.3); (2) Conversion; (3) Trespass to Chattels; (4) Intentional Infliction of Emotional Distress; (5) Elder Financial Abuse (Welf. & Inst. Code § 15610.30 et seq.); (6) Unfair Competition (Bus. & Prof. Code § 17200); and (7) Civil Conspiracy (liability theory). No new parties are added.
(Decl. James L. Arrasmith ¶ 3)

Third, neither the motion nor the supporting declaration of James L. Arrasmith inform the Court as to why the amendment is necessary, what facts give rise to the amended and added causes of action, when were these facts discovered, and why the request for amendment was not made earlier. Plaintiff's original complaint was filed on May 22, 2023, and his first amended complaint was filed on January 10, 2024. Plaintiff does not detail his reason for seeking to amend his pleading again after two years. Instead, Mr. Arrasmith vaguely and improperly declares that "[t]he proposed claims conform the pleadings to facts already disclosed in the record and provide a clearer remedial frameworks." (Decl. James L. Arrasmith ¶ 5)

IV. Conclusion & Order

Accordingly, Plaintiff's Motion for Leave to File a Second Amended Complaint is DENIED WITHOUT PREJUDICE.

SO ORDERED.